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|     |                                                                                                                                                    | <p>Previously, Plaintiffs demurred to the answer filed by Defendant Matthew Caldwell. The parties agree that not only are the Caldwell and Great American answers the same [ROA ## 361, 299] but so are the demurrers to each of them. [ROA ## 370, 309.] [See Opp. (ROA #447) at 3:14-18.]</p> <p>Given this, Plaintiffs have stated that they stipulate to the ruling on their demurrer to Great American's answer being the same as the 6/24/26 ruling [ROA # 421] on Plaintiffs' demurrer to Defendant Caldwell's answer. [See Reply (ROA #453) at 1:2-10.]</p> <p>Accordingly, for the reasons stated in the court's 6/24/26 minute order, the demurrer to Defendant Great American's answer is sustained with leave to amend as to the ninth affirmative defense and overruled as to the remaining.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 11. | <p>2025-1516494<br/>Kimberly Arms, LLC vs. James D. White, as Trustee of the Henry A. Fredricks Separate Property Trust dated October 12, 1988</p> | <p>Case Management Conference</p> <p>The Court denies Plaintiff Kimberly Arms, LLC's Motion to strike portions of Defendant James R. White's (as Co-Trustee) Answer.</p> <p><u>Legal Standard</u></p> <p>Pursuant to Code of Civil Procedure section 436, the court may: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).) "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255.)</p> <p><u>Merits</u></p> <p>Plaintiff brings a singular claim for partition in her Complaint. In response to Defendant's Answer, Plaintiff now seeks to strike the first affirmative defense for unclean hands and facts alleged in the Answer.</p> <p>Specifically, Plaintiff seeks to strike the following from the Answer:</p> <ol style="list-style-type: none"> <li>1. Paragraphs 1-9, Page 9, lines 9-27, and page 10, lines 1-15 of the Answer's First Affirmative Defense (Unclean Hands).</li> <li>2. Paragraph 1, Page 3, Lines 8-12: "...and expands upon Plaintiff's summary as follows: The Complaint appears to be part of a scheme</li> </ol> |

by a disbarred lawyer to steal money that belongs to a 94-year-old woman and was supposed to go to various charities after her death. Responding Defendant will NOT assist in such a fraud and therefore opposes Plaintiff's prayers for partition, contribution, disbursement, possession, fees and costs."

3. Paragraph 2, Page 9, Line 13: "... who is an elder and approximately 94 years old."

4. Paragraph 3, Page 9, Line 14: "Responding Defendant has been unable to reach Catherine Emmi."

5. Paragraph 4, Page 9, Lines 15-16: "Plaintiff has been told that Ms. Catherine Emmi was likely not in California on the date that the deed was allegedly notarized in Riverside California."

6. Paragraph 5, Page 9, Lines 17-19: "Catherine Emmi's signature on the deed Recorded August 27, 2021, appears to be significantly different than Catherine Emmi's signature on earlier documents."

7. Paragraph 6, Page 9, Line 21: "...a disbarred attorney (SBN 93106)..."

8. Paragraph 7, Page 9, Lines 24-17, Page 10, Lines 1-2: "Responding Defendant has been told that Cameron Pearce is also a manager of Plaintiff. Responding Defendant is informed and believes and thereupon alleges that Cameron Pearce is the subject of an investigation by the department of Homeland Security and that search warrants were recently served by the Federal Bureau of Investigation at Mr. Pearce's property. Responding Defendant is uncertain whether Mr. Cameron Pearce was arrested."

9. Paragraph 8, Page 10, Lines 3-12: "Responding Defendant is informed and believes and thereupon alleges that Garfield Langmuir-Logan was disbarred, inter alia, for 'willfully engaging in financial elder abuse against a client,' 'suppressing and failing to disclose information, and misleading trustees and beneficiaries regarding trust property', 'taking property belonging to clients' trust for wrongful use or with intent to defraud, and failing to disclose and falsifying information to mislead his clients regarding trust property', and 'breaching his fiduciary duties as attorney-in-fact for a trust, failing to account, and engaging in self-dealing regarding trust property.' (*In re Garfield Langmuir-Logan (State Bar of California)*, Nos. 16-0-10267-CV, 16-C-17296; 16-C-17291 (Cons.)) Decision And Order Of Involuntary Inactive Enrollment of February 14, 2019.)"

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|     |                                                                          | <p>In broad strokes, Plaintiff argues that these allegations in the Answer are irrelevant and lack factual grounds because unclean hands is not a defense to a partition action.</p> <p>The Code of Civil Procedure provides that as to concurrent interests in property, partition shall be as a matter of right unless barred by a valid waiver. (Civ. Proc. Code, § 872.710, subd. (b).) Thus, waiver may be the only exception to the otherwise absolute right of partition by a cotenant the way the statute is presently drafted.</p> <p>However, because the action is a proceeding in equity, the Court is skeptical that the Legislature intended to restrict the court’s powers of equity, especially when it did not expressly refer to a limitation on such powers to preclude the right of partition. This issue appears unresolved.</p> <p>Further, in a partition action, “[t]he interests of the parties, plaintiff as well as defendant, may be put in issue, tried, and determined in the action.” (Code Civ. Proc., § 872.610.)</p> <p>In <i>Summers</i>, the Court of Appeal held that the partition statutes do not allow a trial court to order the manner of a property’s partition before it determines the ownership interests in the property. (<i>Summers v. Superior Court</i> (2018) 24 Cal.App.5th 138, 141.)</p> <p>Thus, the Court finds that Plaintiff has not shown that the allegations in the Answer are irrelevant or improper. The Court also finds that unclean hands is properly alleged at the pleadings stage.</p> <p>Plaintiff is ordered to serve notice.</p> |
| 12. | 2025-1465984<br>Anaya-Flores<br>vs. Maxim<br>Healthcare<br>Services, Inc | <p>Case Management Conference</p> <p>Defendants Maxim Healthcare Services, Inc. (“Maxim”), Adam Cuomo, and Jonathan Ayran’s (collectively, “Defendants”) Motion to Compel Arbitration and Stay the Action is granted.</p> <p>Defendants move to compel enforcement of an arbitration agreement they contend Plaintiff Maria Anaya-Flores (“Plaintiff”) signed when she completed her “onboarding” documents. (ROA 32 [Nikzad Decl. at ¶ 13, Exh. D.]</p> <p><u>The FAA and CAA</u></p> <p>The FAA applies to any dispute concerning an arbitration provision in a contract “evidencing a transaction involving commerce.” (9</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |